



**IN THE HIGH COURT OF PUNJAB AND HARYANAAT
CHANDIGARH**

201

CRM-M-20975-2026 (O&M)

DATE OF DECISION : 04.06.2026

NAND LAL

.....PETITIONER

VERSUS

STATE OF PUNJAB & ANR.

.....RESPONDENTS

CORAM: HON'BLE MR. JUSTICE SURYA PARTAP SINGH

Present : Mr. Sukhmeet Singh, Advocate for the petitioner.

Mr. Jasdev Singh Thind, DAG Punjab.

None for the respondent No.2.

SURYA PARTAP SINGH, J.

Status report has been submitted by the State. The same be taken on record.

2. It has been informed that despite best efforts, the whereabouts of the respondent No.2 could not be traced.

3. In view of above, without waiting for service of summons upon the respondent No.2 and in view of urgency in the matter, the present matter is being heard.



4. This petition for pre-arrest bail is the first petition, filed by the petitioner under Section 482 of 'the Bharatiya Nagarik Suraksha Sanhita, 2023'. It has been filed with regard to a case arising out of FIR No.130 dated 18.03.2026, for the commission of offence punishable under Sections 419, 420, 467, 468, 471 of Indian Penal Code, Police Station City Faridkot, District Faridkot.

5. The abovementioned FIR came into being on the complaint addressed to this Court by 'Gurmeet Kaur', hereinafter being referred to as 'complainant' only. It was stated by the above-named complainant that a racket of furnishing fake surety bonds in District Faridkot, in connivance with Court officials, Readers and Clerks of Advocates, was working, and that on payment of money by using forged documents, such as Aadhaar Cards, jamabandis and property papers, fake surety bonds are being furnished. According to complainant, on the directions of this Court, an inquiry was conducted, which revealed that several persons including 'Bhupinder Singh', 'Tarsem Singh', 'Nand Lal' (the petitioner herein) and 'Beant Singh' were habitually furnishing surety bonds in multiple cases by using forged documents and fake identities. As per complainant, the petitioner had also furnished sureties in different cases, including cases titled as 'Narinder Singh V/s Shinderpal Kaur', FIR No.120 dated 04.09.2023 under Sections 174-A of IPC, PS Sadar Kotkapura and FIR No.117 dated 14.01.2023 under Sections 307, 331, 354, 186, 149, 201 of IPC, PS City Faridkot, in favour of different accused, by using different Aadhaar Cards and forged affidavits.



6. It is the case of the prosecution that pursuant to abovementioned complaint, formal FIR of this case has been lodged and the investigation taken up.

7. Heard.

8. It has been contended by learned counsel for the petitioner that the petitioner is innocent, who has been falsely implicated in the present case. According to learned counsel for the petitioner, the only allegation against the petitioner is that he had furnished surety bonds in three different cases for three different accused. As argued by learned counsel for the petitioner, the petitioner was never joined in the inquiry, and that he is ready to join the investigation. It has also been contended by learned counsel for the petitioner that the offence is triable by the Court of Judicial Magistrate and that custodial interrogation of the petitioner is not likely to produce any favourable result. In view of above, the learned counsel for the petitioner has sought for the benefit of pre-arrest bail.

9. The learned State Counsel has controverted the abovementioned arguments. According to learned State Counsel, there are very serious allegations against the petitioner with regard to his involvement in the commission of crime of playing fraud with the judicial system. As per learned State Counsel, the case of the petitioner is not a simple case, wherein he had furnished three different surety bonds with regard to three different accused. According to learned State Counsel, in fact for all the three surety bonds, furnished by the petitioner, he had used three different Aadhaar Card containing different numbers.



10. With regard to above, it has been contended by learned State Counsel that only one Aadhaar could have been genuine, and thus two Aadhaar Cards used by the petitioner were forged. As per learned State Counsel, in order to fix the role of petitioner in the commission of offence, and also to find out the details of other persons involved in the same offence, custodial interrogation of the petitioner is necessary.

11. The record has been perused carefully.

12. The instant case is a case, wherein the allegations against the petitioner are that in three different cases for three different accused, he furnished bail bonds. However, while furnishing bail bonds:-

Firstly, he used three different Aadhaar Cards, which by any stretch of imagination cannot be said to be genuine Aadhaar Cards, because in all the three Aadhaar Cards there were different Aadhaar numbers; and

Secondly, the petitioner also furnished false affidavit to the effect that he had not furnished any surety bonds for any other accused.

13. Taking into consideration the abovementioned acts of the petitioner, which amounts to commission of serious offence, it is hereby held that the petitioner, who was playing fraud with the judicial system, does not deserve a considerate view.

14. As far as the benefit of anticipatory bail is concerned, it is settled principles of law that the Court must be circumspect, while exercising power for grant of anticipatory bail and it should not be granted



as a matter of routine. Rather as per law the abovesaid benefit should be granted only when the Court is convinced that exceptional circumstances exist for the extraordinary remedy.

15. With regard to above, the Hon'ble Supreme Court of India in the case of Srikant Upadhyay v. State of Bihar 2024 SCC OnLine SC 282, has observed that power to grant anticipatory bail is extraordinary power, and that irrespective of the fact that in a number of cases, it has been held that bail is a rule, it cannot; by any stretch of imagination, be said that anticipatory bail is a rule.

16. The Hon'ble Supreme Court of India in the abovementioned case has further observed that rule of anticipatory bail is a question of judicial discretion depending upon the facts and circumstances of each case. According to Hon'ble Apex Court, when called upon to exercise the abovesaid power the Court concerned has to be very cautious, as the grant of interim protection to the accused in serious cases may lead to miscarriage of justice and may hamper the investigation.

17. Similarly, in the case of Nikita Jagganath Shetty alias Nikita Vishwajeet Jadhav v. The State of Maharashtra and Another (Special Leave Petition (Criminal) No. 10255 of 2024, decided on 21.07.2024), the Hon'ble Supreme Court of India has held that anticipatory bail is an exceptional remedy and it ought not be granted in a routine manner. As per the Hon'ble Supreme Court, there must exist strong reasons for extending indulgence of this extraordinary remedy to a person accused of grave offence.



18. In the case of Gurbaksh Singh Sibbia etc. v. State of Punjab 1980 SCC (2) 565, the Hon'ble Supreme Court of India held that:-

- (i) The power under Section 438, Criminal Procedure Code, is of an extraordinary character and must be exercised sparingly in exceptional cases only.
- (ii) In addition to the limitations mentioned in Section 437, the petitioner must make out a special case for the exercise of the power to grant anticipatory bail.
- (iii) Where a legitimate case for the remand of the offender to the police custody under Section 167(2) can be made out by the investigating agency or a reasonable claim to secure incriminating material from information likely to be received from the offender under Section 27 of the Evidence Act can be made out, the power under Section 438 should not be exercised.

19. It shall not be out of place to mention here that the right of custodial interrogation is a valuable right of the Investigating Agency, and in the present case, if such right is denied to the Investigating Agency, it is likely to result into miscarriage of justice, as the investigation may not take a proper headway and the Investigating Agency may not be able to collect the requisite evidence.

20. Considering the above-discussed facts and circumstances and the relevant laws, it is hereby observed that no ground exists for invoking the extraordinary jurisdiction to protect the petitioner, by according him benefit of pre-arrest bail. Thus, it is hereby held that the present petition



being devoid of merits deserves dismissal. The same is hereby *dismissed*, accordingly.

21. It is, however, clarified that the observations made hereinabove shall not be construed as an expression of opinion on the merits of the case.

22. Since the main petition has been dismissed, pending applications, if any, are rendered infructuous.

04.06.2026

Gaurav Thakur

(SURYA PARTAP SINGH)
JUDGE

Whether speaking/reasoned	:Yes/No
Whether reportable	: Yes/No